

The Morning Briefing

THURSDAY, AUGUST 6, 2026 — FOR MARCUS JOHNSON — POLITICS, LAW, ROME, AND THE WORLD

TOP STORY — U.S. POLITICS / JUDICIARY

Fauci Faces Contempt of Congress Vote After Pleading the Fifth More Than 100 Times

The Senate Homeland Security and Governmental Affairs Committee, chaired by Rand Paul (R-KY), voted Thursday on a resolution to hold Dr. Anthony Fauci in contempt of Congress for refusing to answer questions under subpoena. Paul argues Fauci's pre-emptive pardon from President Biden stripped his Fifth Amendment privilege and that Fauci waived it further by delivering opening testimony. A successful resolution can be referred to the Justice Department or sent to the full Senate by Majority Leader John Thune. The same week, a federal judge cleared the way for the Trump administration to end deportation protections for 350,000 Haitians — two fronts in the same larger fight over how far executive power now reaches unchecked by courts or witnesses.

U.S. POLITICS

Fauci Contempt Vote Tests Limits of a Pardon

The Senate Homeland Security and Governmental Affairs Committee voted Thursday on whether to hold Dr. Anthony Fauci, former head of the National Institute of Allergy and Infectious Diseases, in contempt of Congress. Fauci invoked his Fifth Amendment right more than 100 times during a subpoenaed hearing, telling the committee he believed Republicans would use his testimony to prosecute him. Chairman Rand Paul (R-KY) ruled that Fauci's pre-emptive pardon from then-President Biden meant the Fifth Amendment no longer applied, and that Fauci further waived any remaining privilege by giving opening remarks. If the resolution passes, the committee can refer it directly to the Justice Department or ask Majority Leader John Thune (R-SD) to hold a full Senate vote.

WHY IT MATTERS

This is a live test of a novel theory: that a pardon can be read backward to strip a witness of Fifth Amendment protection. If it holds, it becomes a template for compelling testimony from any pardoned figure, past or future, regardless of party.

Washington Post — [washingtonpost.com/politics/2026/08/06/fauci-congress-justice-department](https://www.washingtonpost.com/politics/2026/08/06/fauci-congress-justice-department)

El-Sayed Wins Michigan Senate Primary, Beating Establishment Pick

Progressive candidate Abdul El-Sayed narrowly defeated establishment-backed Rep. Haley Stevens in Michigan's Democratic Senate primary, 48.5 percent to 47.5 percent,

overcoming an estimated \$65 million in outside spending against him. El-Sayed, an epidemiologist and former director of Wayne County's health department, advances to face Republican Mike Rogers, who ran unopposed, in November.

WHY IT MATTERS

A one-point win against a well-funded establishment favorite suggests the progressive lane still has real primary strength in a swing state, spending disparities notwithstanding.

NBC News — [nbcnews.com/politics/2026-election/abdul-el-sayed-wins-michigans-democratic-senate-primary](https://www.nbcnews.com/politics/2026-election/abdul-el-sayed-wins-michigans-democratic-senate-primary)

USCIS Expands Social-Media Vetting for "Anti-American" Activity

US Citizenship and Immigration Services announced it will expand social-media vetting to additional categories of immigration benefit requests, adding review for what it calls anti-American and antisemitic activity. Officials say evidence of such activity will count as an overwhelmingly negative factor in discretionary adjudications, citing Executive Orders 14161 and 14188. The move builds on an April 2026 directive that first introduced antisemitism screening for benefit applicants.

USCIS — uscis.gov/newsroom/news-releases/uscis-to-consider-anti-americanism-in-immigrant-benefit-requests

SCOTUS AND THE JUDICIARY

Federal Judge Clears Way to End TPS for 350,000 Haitians

US District Judge Ana Reyes reversed her own earlier injunction and allowed the Trump administration to terminate Temporary Protected Status for roughly 350,000 Haitians, following a Supreme Court ruling in June that found a federal statute restricts courts from reviewing Department of Homeland Security decisions to end TPS designations. Thousands of Haitians now face the loss of work authorization and the prospect of deportation to a country the US government itself still designates as dangerous.

ANALYTICAL READ

This is the practical payoff of the Court's June ruling stripping judicial review from TPS terminations — a quiet transfer of power from courts to the executive that sits alongside the broader immunity and unitary-executive litigation covered in this week's Long Reads.

Washington Post — [washingtonpost.com/immigration/2026/08/05/tps-haitians-officially-ends-putting-thousands-out-work-limbo/](https://www.washingtonpost.com/immigration/2026/08/05/tps-haitians-officially-ends-putting-thousands-out-work-limbo/)

Court in Recess; Citizenship-Voting Case Already on October Docket

The Supreme Court remains on summer recess until October. Its next term already includes a dispute over proof-of-citizenship requirements for voting, one of six new cases the Court agreed to hear this summer.

SCOTUSblog — [scotusblog.com/2026/06/court-agrees-to-hear-six-new-cases-including-dispute-over-proof-of-citizenship-to-vote/](https://www.scotusblog.com/2026/06/court-agrees-to-hear-six-new-cases-including-dispute-over-proof-of-citizenship-to-vote/)

ISRAEL AND THE MIDDLE EAST

IDF Strikes South Lebanon After IED Kills Two Reservists

An explosive device killed two Israeli reservists and wounded seven others in southern Lebanon; the IDF responded with strikes on the villages of Mansouri and Tebnine that killed at least two people and wounded roughly two dozen, describing the action as a response to a “blatant” ceasefire violation by Hezbollah. Israeli reporting indicates the military itself pushed for a harsher response and was overruled by the political leadership, which opted for more limited strikes.

ANALYTICAL READ

The justification rests entirely on Israel's own account of a buffer zone it alone declared and polices unilaterally. That its own military wanted to go further, and was reined in by politicians, suggests the strikes were calibrated for domestic and diplomatic optics as much as security. Washington has backed this arrangement without pressing Israel to define the zone's limits or endpoint, leaving the US exposed if the ceasefire unravels into a wider war. Motive and beneficiary: Israel gains a freer hand to police the zone by force; the political echelon gains a chance to look measured next to its own generals.

Times of Israel — [timesofisrael.com/idf-strikes-southern-lebanon-town-alleging-ceasefire-violation-by-hezbollah/](https://www.timesofisrael.com/idf-strikes-southern-lebanon-town-alleging-ceasefire-violation-by-hezbollah/)

Settlers Torch Palestinian Homes in West Bank Village; No Arrests

Six Palestinians, including four children aged five to ten, were wounded when Israeli settlers set fire to homes in the West Bank village of Tuba. Police found burned buildings, graffiti, and destroyed property, but the suspects fled before

the IDF and police arrived. A related overnight attack near Nablus left graffiti naming an IDF general by name. The UN says settler violence has reached an all-time high this year.

ANALYTICAL READ

Official condemnation paired with no arrests is the pattern worth tracking, not the statements themselves. Graffiti calling out a named general suggests some settler factions no longer fear consequences from the military's own chain of command, let alone the police.

Jerusalem Post — [jpost.com/israel-news/article-904757](https://www.jpost.com/israel-news/article-904757)

Iran and Oman Near Hormuz Deal as Tehran Threatens Gulf States

Negotiators are said to be close to a deal reopening the Strait of Hormuz that would give Iran fee-setting authority over transiting ships — Tehran is seeking 5 to 7 percent of cargo value, Oman has floated roughly 3 percent, and Washington wants no fees at all. Separately, Iran warned Gulf states that any new US strike on its territory would trigger retaliation against regional energy infrastructure. President Trump says talks are going well but has repeated threats to “hit” Iran hard if it backs out again.

ANALYTICAL READ

A deal handing Iran fee leverage it did not have before the crisis functions as a win for Tehran dressed up as a truce, paid for by higher global shipping costs. The gap between Trump's public threats and his negotiators' quiet concessions on fees is what Israel and Gulf states are watching most closely, as a signal of how firm US red lines actually are.

Times of Israel — [timesofisrael.com/iran-oman-said-nearing-deal-that-will-restore-us-truce-give-tehran-some-control-over-hormuz/](https://www.timesofisrael.com/iran-oman-said-nearing-deal-that-will-restore-us-truce-give-tehran-some-control-over-hormuz/)

ITALY, ROME, AND THE VATICAN

Pope Resumes Audiences: “Prayer Is an Act of Hope”

Returning from summer rest at Castel Gandolfo, Pope Leo XIV delivered his fifth catechesis on *Sacrosanctum Concilium*, the Second Vatican Council’s Constitution on the Liturgy, before thousands gathered in St. Peter’s Basilica. “As the Apostle Paul suggests, it is the Holy Spirit who teaches us to pray,” the Pope said, tracing the practice to Pentecost. He warned that in a culture shaped by “an efficiency-driven and consumerist mindset, prayer may seem pointless and trivial,” sometimes mistaken for “a form of escapism or just another psychological technique aimed at personal well-being.” Against that, he described the liturgy as “the place of encounter, of God’s initiative in drawing near to humanity in His Son.”

The Pope walked through the Liturgy of the Hours — morning, midday, evening, and night prayer — as the structure that “sanctifies the time of our daily lives,” concluding: “each Hour is an act of hope... we keep watch, awaiting with the whole Church the glorious return of the Lord.”

Vatican News — vaticannews.va/en/pope/news/2026-08/pope-at-audience-prayer-is-an-act-of-hope.html

Pope Leo to Visit Uruguay, Argentina, and Peru in November

The Holy See Press Office confirmed Pope Leo XIV will make an eleven-day Apostolic Journey to Latin America from November 6 to 17, visiting Montevideo, Paysandu, and Florida in Uruguay; Buenos Aires, Cordoba, and Lujan in Argentina; and Lima, Chiclayo, Cusco, and Pucallpa in Peru — ten cities in all, his sixth international trip. Uruguay has the lowest share of Catholics of any Latin American country (36 percent). Argentina is the homeland of Pope Francis, who never returned there during his twelve-year pontificate. Peru is where Leo first arrived as a missionary in the 1980s, later serving as a bishop and acquiring citizenship.

Vatican News — vaticannews.va/en/pope/news/2026-08/pope-to-make-apostolic-journey-to-uruguay-argentina-and-peru.html

Pope to Catholic Communicators in Kigali: Serve Truth, Not Algorithms

In a message read by Archbishop Arnaldo Catalan, Apostolic Nuncio to Rwanda, to Catholic communicators gathered in Kigali from August 3 to 8, Pope Leo XIV said digital communication platforms must serve truth, human dignity, and the common good rather than engagement metrics, calling communicators to be “prophets of harmony in an age of division.”

Vatican News — vaticannews.va/en/pope/news/2026-08/pope-leo-digital-communication-must-serve-truth-and-human-digni.html

WORLD

Pope Voices Concern Over Ceuta as Migrant Crossings Intensify

At his August 2 Angelus, Pope Leo XIV said he was following “with concern the alarming situation in Ceuta,” the Spanish enclave in North Africa where migrant crossing attempts have intensified in recent weeks.

Vatican News — vaticannews.va/en/pope/news/2026-08/pope-leo-xiv-impassioned-appeal-sunday-angelus-2-august-2026.html

Hormuz Standoff Is a Global Shipping Story, Not Just a Regional One

The Iran-Oman Hormuz negotiations detailed above carry consequences well beyond the Gulf: a prolonged closure, or a resolution that lets Tehran set fees on transiting cargo, would raise shipping costs worldwide and test whether Washington’s public rhetoric toward Iran matches the concessions its negotiators are quietly making at the table.

CNN — cnn.com/2026/08/05/world/live-news/iran-war-trump

RESEARCH AND LONG READS

Power and Immunity in Youngstown and Trump v. United States

A Penn Law Review essay argues the Supreme Court’s presidential-immunity ruling badly misreads Justice Jackson’s famous Youngstown concurrence even as it leaves intact a broad view of preclusive presidential power, one the executive has since tested against the outer limits of any meaningful constraint. Directly relevant to today’s TPS ruling and the Fauci pardon-immunity fight: both are downstream of how far courts will let executive power run.

Penn Law Review — pennlawreview.com/2026/03/06/power-and-immunity-in-youngstown-and-trump-v-united-states

The Right-Wing Intellectuals Who Keep Winning

An Oxford Political Review essay from March 2026 maps the American right’s current factional split — Claremont-style constitutionalists, postliberals, and national conservatives — and asks why this ecosystem has consistently out-produced center-left institutions in setting the terms of political debate. Pairs well with Laura Field’s 2025 book *Furious Minds* and Charles Kesler’s earlier Claremont Review essay charting the same three-way split.

Oxford Political Review — oxfordpoliticalreview.com/2026/03/31/the-right-wing-intellectuals-who-keep-winning